

THE CONSTITUTION (TWENTIETH AMENDMENT) ACT, 1966

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Constitution and Amendments

THE CONSTITUTION (TWENTIETH AMENDMENT) ACT, 1966

India

THE CONSTITUTION (TWENTIETH AMENDMENT) ACT, 1966

Act 20 of 1966

Published in Gazette of India on 20 November 1966

Commenced on 22 December 1966

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[Note: The original publication document is not available and this content could not be verified.]

Statement of Objects and Reasons appended to the Constitution (Twenty-third Amendment) Bill, 1966 which was enacted as the THE CONSTITUTION (Twentieth Amendment) Act, 1966

STATEMENT OF OBJECTS AND REASONS

Appointment of district judges in Uttar Pradesh and a few other States have been rendered invalid and illegal by a recent judgment of the Supreme Court on the ground that such appointments were not made in accordance with the provisions of article 233 of the Constitution. In another judgment, the Supreme Court had held that the power of posting of a district judge under article 233 does not include the power of transfer of such judge from one station to another and that the power of transfer of a district judge is vested in the High Court under article 235 of the Constitution. As a result of these judgments, a serious situation has arisen because doubt has been thrown on the validity of the judgments, decrees, orders and sentences passed or made by these district judges and a number of writ petitions and other cases have already been filed challenging their validity. The functioning of the district courts in Uttar Pradesh has practically come to a standstill. It is, therefore, urgently necessary to validate the judgments, decrees, orders and sentences passed or

made heretofore by all such district judges in those States and also to validate the appointment, posting, promotion and transfer of such district judges barring those few who were not eligible for appointment under article 233.

2.

The Bill seeks to give effect to the above proposals.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Seventeenth Year of the Republic of India as follows:-

1.

Short title.-

This Act may be called the Constitution (Twentieth Amendment) Act, 1966.

2. Insertion of new article 233A.-

After article 233 of the Constitution, the following article shall be inserted, namely:-

"233A. Validation of appointments of and judgements, etc., delivered by, certain district judges.-Notwithstanding any judgment, decree or order of any court,-

(a)

(i)

no appointment of any person already in the judicial service of a State or of any person who has been for not less than seven years an advocate or a pleader, to be a district judge in that State, and

(ii)

no posting, promotion or transfer of any such person as a district judge, made at any time before the commencement of the Constitution (Twentieth Amendment) Act, 1966, otherwise than in accordance with the provisions of article 233 or article 235 shall be deemed to be illegal or void or ever to have become illegal or void by reason only of the fact that such appointment, posting, promotion or transfer was not made in accordance with the said provisions;

(b)

no jurisdiction exercised, no judgment, decree, sentence or order passed or made, and no other act or proceeding done or taken, before the commencement of THE CONSTITUTION (Twentieth Amendment) Act, 1966 by, or before, any person appointed, posted, promoted or transferred as a district judge in any State otherwise than in accordance with the provisions of article 223 or article 235 shall be deemed to be illegal or invalid or ever to have become illegal or invalid by reason only of the fact that such appointment, posting promotion or transfer was not made in accordance with the said provisions."

[The Constitution (Twentieth Amendment) Act, 1966, inserted a new article 233A inter alia validating the appointments, postings, promotions, and transfers of and judgements, delivered before the commencement of the present Act, by district judges who were appointed, posted, promoted or transferred as a district judge in any State otherwise than in accordance with the provisions of article 233 or article 235 of the Constitution.

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